IN THE NATIONAL COMPANY LAW TRIBUNAL,
SINGLE BENCH, CHENNAI

CA/157/CAA/2019

Under Sections 230 to 232 of the Companies Act, 2013

In the matter of Scheme of Amalgamation

Between

M/s. Sundaram BPO India Limited
(Transferor Company)

And

M/s. Sundaram Business Services Limited
(Transferee Company)

Order delivered on 19th February, 2019

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CH. MOHD SHARIEF TARIQ, MEMBER (JUDICIAL)

For Applicant(s): Mr. A. G. Sathyanarayana, Counsel

ORDER

Per: CH. MOHD SHARIEF TARIQ, MEMBER (JUDICIAL)

1. Under consideration is Application No. CA/157/CAA/2019 filed under Sections 230 to 232 of the Companies Act, 2013. The prayer made is to dispense with convening, holding and conducting of the meeting of Equity Shareholders of the Transferor Company. Further, to dispense with convening, holding

and conducting of the meeting of Equity Shareholders and Unsecured Creditors of the Transferee Company.

2. **M/s. Sundaram BPO India Limited:**

i. The Transferor Company viz., M/s. Sundaram BPO India Limited has 7 (Seven) Equity Shareholders. The list of Equity Shareholders is placed at page 212 of the typed set filed with the Application. The consent affidavits given by the Equity Shareholders are placed at pages 213-233 of the typed set filed with the Application, wherein it has been deposed that they do support the Scheme and consent to dispense with convening, holding and conducting the meeting of Equity Shareholders. Therefore, the meeting of the Equity Shareholders of the Transferor Company is allowed to be dispensed with.

ii. There are no Secured Creditors in relation to the Transferor Company. The Certificate issued by the Chartered Accountants to this effect is placed at page 196 of the typed set filed with the Application.

iii. There are no Unsecured Creditors in relation to the Transferor Company. The Certificate issued by the Chartered Accountants to this effect is placed at page 198 of the typed set filed with the Application.

3. **M/s. Sundaram Business Services Limited:-**

i. The Transferee Company viz., M/s. Sundaram Business Services Limited, has 7 (Seven) Equity Shareholders. The list of Equity Shareholders is placed at page 234 of the typed set filed with the Application. The consent affidavits given by the Equity Shareholders are placed at pages 235-255 of the typed set filed with the Application, wherein it has been deposed that they do support the Scheme and consent to dispense with convening, holding and conducting the meeting of Equity Shareholders. Therefore, the meeting of the Equity Shareholders of the Transferee Company is allowed to be dispensed with.

ii. There are no Secured Creditors in relation to the Transferee Company. The Certificate issued by the

Chartered Accountants to this effect is placed at page 197 of the typed set filed with the Application.

iii. There are 4 (Four) Unsecured Creditors in relation to the Transferee Company. The list of Unsecured Creditors is placed at page 199 of the typed set filed with the Application. The consent affidavits given by the Unsecured Creditors are placed at pages 200-211 of the typed set filed with the Application, wherein it has been deposed that they do support the Scheme and consent to dispense with convening, holding and conducting the meeting of Unsecured Creditors. Therefore, the meeting of the Unsecured Creditors of the Transferee Company is allowed to be dispensed with under clause (9) of the Section 230 of the Companies Act, 2013. .

4. The Registry is directed to issue notice to the concerned Regional Director, Ministry of Corporate Affairs, RoC concerned and Income Tax Authorities including the Assessing Officer of the I.T. Circle and

OL in relation to the Transferor Company with the direction to appoint Chartered Accountants on his own for filing report. In case, the statutory authorities to whom the notice is issued are desirous of making any objection/representation, they may do so within 30 days from the date of receipt of the notice. In case no objection/representation is made, it shall be presumed that they/any of them have/has no objection/representation to make.

5. The Applicant Companies are directed to issue private notice to the said authorities/regulators by way of speed post/hand delivery. The proof of sending and effecting the service of notice upon them along with the newspaper publication shall be submitted with supporting affidavit to this Bench along with Company Petition.

6. The Applicant Companies are directed to effect publication separately in the newspapers one in English "Trinity Mirror" (Tamilnadu Edition) and another in vernacular "Makkal Kural" (Tamilnadu

Edition) provided the said newspapers have wide circulation in the State of Tamilnadu, having not less than 30 + 2 days before filing the Company Petition. The Applicant Companies are directed to upload the notice on their websites and display the notice on the notice board at its Registered Office. The Registry is also directed to display the notice on the notice board of this Bench.

7. Accordingly, the Application is **allowed**. The Applicant Companies are directed to present the Petition on or before 25.03.2019.

[CH. MOHD. SHARIEF TARIQ]
MEMBER (JUDICIAL)

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